

Ontario Heritage Act — Buyer Reference Note

The Ontario Heritage Act lets municipalities identify and protect property of cultural heritage value. In Toronto a property may be 'listed' on the Heritage Register or formally 'designated' under Part IV (individual property) or Part V (within a Heritage Conservation District).

Designation under Part IV restricts alteration: the owner must obtain Council consent before altering any heritage attribute, and cannot demolish or remove a designated structure without Council approval. These approvals add time, cost, and uncertainty to any renovation.

Listed (non-designated) properties carry a 60-day demolition notice requirement, giving Council time to consider designation before a permit is issued.

Heritage Conservation District (Part V) properties are subject to district guidelines governing materials, additions, and streetscape character. Heritage permits are required for visible exterior work.

For a buyer, heritage status can constrain redevelopment potential, raise maintenance and renovation costs (period-appropriate materials), and lengthen permit timelines. It is a material risk flag for the true 10-year cost of ownership.